

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shevani Patel	Team: Team # 5	CCRB Case #: 201308122	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 07/05/2013 3:29 AM	Location of Incident: In front of 1140 Broadway in Brooklyn; 81st Precinct stationhouse	18 Mo. SOL 1/5/2015	Precinct: 81		
Date/Time CV Reported Mon, 08/12/2013 1:53 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/03/2013 3:05 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Rachid Benlhousain	21282	945504	081 PCT
2. An officer			081 PCT
3. Officers			081 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Rachid Benlhousain	Abuse: In front of 1140 Broadway in Brooklyn, PO Rachid Benlhousain stopped § 87(2)(b)	A . Complainant Uncooperative
B . An officer	Abuse: In front of 1140 Broadway in Brooklyn, an officer stopped § 87(2)(b)	B . Complainant Uncooperative
C . An officer	Discourtesy: In front of 1140 Broadway in Brooklyn, an officer acted rudely toward § 87(2)(b)	C . Complainant Uncooperative
D . Officers	Force: At the 81st Precinct stationhouse, officers used physical force against § 87(2)(b)	D . Complainant Uncooperative

Case Summary

On August 12, 2013, § 87(2)(b) filed the following complaint with IAB by telephone where it received log number 2013-36991. On September 3, 2013, IAB referred the complaint to the CCRB.

On July 5, 2013, at approximately 3:29 a.m., § 87(2)(b) was walking and drinking a slurpee when he saw PO Rachid Benhoussain and an unidentified black male sergeant of the 81st Precinct talking to his unidentified friends in front of 1140 Broadway in Brooklyn. As § 87(2)(b) approached them, both officers turned around and asked him if he was intoxicated (**Allegations A and B**). He denied being intoxicated or drinking alcohol. The unidentified sergeant knocked the slurpee cup out of § 87(2)(b)'s hand (**Allegation C**). § 87(2)(b) was placed under arrest for § 87(2)(b). He was taken to the 81st Precinct stationhouse. In the cell area, the unidentified sergeant and five other unidentified officers in both plainclothes and uniform kicked his ribs, stomped on his hand and punched him in the face (**Allegation D**). EMS was called to the stationhouse and § 87(2)(b) was removed to § 87(2)(b). When § 87(2)(b) was released from custody on § 87(2)(b), he noticed that his eye was turning red. He returned to § 87(2)(b) and was diagnosed with § 87(2)(b).

§ 87(2)(b)'s arrest report lists PO Benhoussain as his arresting officer and the narrative indicates that he was one of the officers present during § 87(2)(b)'s apprehension. § 87(2)(g)

On September 5, 2013 and September 16, 2013, please call letters were sent to § 87(2)(b). These letters were not returned by the United States Postal Service. From September 5, 2013 to September 16, 2013, § 87(2)(b) was called six times; voicemails were left each time the call was not picked up. On the fourth call, § 87(2)(b) answered the phone and stated that he was familiar with the complaint that he filed; however, he stated that he was unable to speak at the time and did not provide a telephone statement. On September 19, 2013, a search of the NYC Department of Correction website did not indicate that § 87(2)(b) was incarcerated. To date, § 87(2)(b) has not responded to the undersigned's further attempts to obtain a statement. It is therefore recommended that **Allegations A, B, C and D be closed as complainant uncooperative.**

Team: 5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date